

Practice Midterm

Instructions

[These are the same instructions that will appear in the graded Midterm, except that I have adjusted the number of questions listed, and the word limit, to reflect what is in this practice exam. Put another way: Things that are highlighted will have slightly different numbers for the actual midterm.]

This exam is 5 pages long (including this instructions page). Please make sure that you have all pages. Please write your exam number at the top of this page, and turn in this packet at the end of the exam.

You should also have been provided with a copy of the excerpted Federal Rules of Civil Procedure. Please write your exam number on the front page of that packet, and turn it in at the end of the exam as well.

The questions for this exam consist of two parts: Part I consists of five (5) multiple choice questions, and Part II consists of one (1) essay question. The essay has a word limit of 650 words, and exceeding that word limit will negatively impact a score. The available point value for each question is indicated (in brackets), and that should give you a rough guide as to how to allocate your time—the total points [for this practice midterm] amount to 30. You have one hour to complete the exam and submit your answers using the EBB software.

This exam is closed-book and closed-note (with the exception, of course, that you may use the copy of the excerpted FRCP that you have been provided). EBB will be set to “closed,” meaning that you may not access electronic materials on your computer or the internet.

For the essay question, be sure to answer the question that is asked, applying any relevant law that we have covered to the fact pattern. It is possible, though, that not every fact described in the fact pattern will be relevant to answering a question that you are asked—part of your job in answering the exam is to sort the relevant facts from the irrelevant ones, and to say something about the relevant facts. As a result, I recommend that you take some time to read the question and plan your answer before you begin to write that answer. For the purposes of this exam, any facts that are stated and any representations that are made about the law of a jurisdiction are as given. If you need additional facts to answer a question, indicate what those facts are and why you need to know them. In addition, be sure to state any assumptions that you are making. Aim to be clear and concise, but make sure to deal with all of the issues that are raised, even if you believe that the disposition of one of them is controlling. Clear writing and good organization will, of course, help me to understand the substance of your answers.

Please remember that the UHLC Honor Code is in effect. In particular, your answers must be entirely your own work; you may not discuss the exam with anyone, either while taking it or thereafter until everyone has taken the exam; and you may not use any large language AI model to draft any portion of your exam. By submitting your exam answers, you acknowledge these instructions and certify that you have complied with all limitations on collaboration.

Good luck!

Part I. Multiple Choice Questions (10 points total)

Instructions: Choose the best answer for each of the following 5 questions. Each question is worth 2 points. There is no penalty for guessing, so be sure to answer all questions.

If you believe that one of the multiple-choice questions is defective, you may write a short note explaining why, using the entry tab for the first essay question in EBB and writing your note before beginning your answer for the essay question. If you do so, be sure to still make a choice for that multiple-choice question, so that you can receive credit. (And note that any words you use to challenge a multiple-choice question in that way **will not** count toward the word limit for your essay answer—i.e., your essay answer still gets to be up to 650 words, not counting any words used to challenge a multiple-choice question.)

1. Pat is a student at a private law school. Pat files a Complaint alleging that the school's student code of conduct violates his First Amendment rights. Pat's Complaint notes that the school is private, not public. The school's lawyers plan to argue that the First Amendment only applies to government actions, and therefore it doesn't apply to a *private* law school, meaning that the private law school cannot be held liable for violating First Amendment rights (as Pat's Complaint attempts to hold them liable for). What motion should the school's lawyers file to make this argument at the earliest possible time in the litigation?

- (A) A 12(b)(1) motion.
- (B) A 12(b)(4) motion.
- (C) A 12(b)(6)
- (D) A 12(c) motion.
- (E) A 12(e) motion.

2. Pat is a student at a private law school. Pat files a Complaint alleging that the school's student code of conduct violates his First Amendment rights. Pat's Complaint notes that the school is private, not public. The school's lawyers plan to argue that the First Amendment only applies to government actions, and therefore it doesn't apply to a *private* law school, meaning that the private law school cannot be held liable for violating First Amendment rights (as Pat's Complaint attempts to do). The school, however, filed an Answer 25 days ago, and the Answer did not include this argument (instead, the Answer argued that the school's alleged actions did not violate the First Amendment, without arguing that the Amendment doesn't apply to the school). What, if anything, should the school do to raise its argument that the First Amendment does not apply to private schools and therefore that the school's actions could not be unlawful under the First Amendment?

- (A) The school cannot do anything, it missed its chance to make this argument.
- (B) Amend the Answer as a matter of course under Rule 15.
- (C) File a 12(b)(6) motion.
- (D) File a 12(c) motion.

(E) Do nothing and hope that Pat fails to prosecute the case further.

3. Waterslide Co. makes waterslides. Plaintiff is injured on a waterslide and then sues Waterslide Co. in federal court. Waterslide Co. has its insurer examine the waterslide. The insurer prepares a report for Waterslide Co. and for Waterslide Co.'s lawyer evaluating the likelihood that, at a trial, the Plaintiff could prove that Waterslide Co. made the slide. Plaintiff also has someone examine the slide. During discovery, Plaintiff requests a copy of the insurer's report, and Plaintiff also plans to depose the insurer to ask if the slide was made by Waterslide Co. Which of the following is most likely true?

(A) Plaintiff will not be able to discover a copy of the report, and Plaintiff also will not be able to ask the insurer in a deposition if Waterslide Co. made the slide.

(B) Plaintiff will not be able to discover a copy of the report, but Plaintiff will be able to ask the insurer in a deposition if Waterslide Co. made the slide.

(C) Plaintiff will be able to discover a copy of the report, but Plaintiff will not be able to ask the insurer in a deposition if Waterslide Co. made the slide.

(D) Plaintiff will be able to discover a copy of the report, and Plaintiff will also be able to ask the insurer in a deposition if Waterslide Co. made the slide.

4. Waterslide Co. makes waterslides. Plaintiff is injured on a waterslide, and then sues Waterslide Co. in federal court. Waterslide Co.'s lawyer drafts a strategy memo about the strengths and weaknesses of the case.

During discovery, Plaintiff requests hundreds of documents from Waterslide Co., and Waterslide Co.'s lawyer reviews the documents before turning them over. But there are lots and lots of documents, and they're stacked in various places around the lawyer's office. On the day that the documents have to be turned over, Waterslide Co.'s lawyer is making handwritten notes on the strategy memo about the case, then gets an urgent phone call, at which point the lawyer sets the strategy memo down on a pile of documents while taking the phone call.

Later that afternoon, feeling rushed, Waterslide Co.'s lawyer gathers up all of the piles of documents in their office and hands the stack to Plaintiff's lawyer. The next day, Waterslide Co.'s lawyer realizes that the strategy memo was in the pile of documents they handed over. Assuming that the parties do not have a clawback agreement, is it likely that Waterslide Co. can claw back the strategy memo?

(A) Likely yes.

(B) Likely no.

5. Generally, under the First Amendment, public high schools can only limit student speech if that student speech causes a "substantial disruption" of school activities. P.L. was in the parking lot of their public high school ten minutes before homeroom and sent a SnapChat to 10 friends on the basketball team criticizing the basketball coaches. The school suspended P.L. the next week. P.L. sued the school.

During discovery, all 10 of P.L.’s friends stated in depositions that they “briefly” discussed the SnapChat as they were filing into their “algebra class on November 1,” but they all stated that they did so “quite calmly.”

The algebra teacher stated in a deposition that it was “impossible” to bring the class to attention for “most of the class period on November 1,” because there was “a heated argument” occurring among the students. But, the teacher said, “I’m not sure if the argument was about a Snappity Chat. Or did you say a Snippity Snap? I’ve never heard of such a thing. Kids these days!”

Assume that no other relevant evidence emerged during discovery. Both parties then moved for summary judgment. What should the court do?

- (A) Grant P.L.’s motion for summary judgment.
- (B) Grant the school’s motion for summary judgment.
- (C) Deny both motions for summary judgment and send the case to trial.

[Additional practice opportunity: Before looking at the answer key for question 5, you could write an essay answer for question 5, applying the summary judgment standard to the fact pattern. Here’s what the prompt would look like:

You are a law clerk for the judge handling P.L.’s case. Your judge asks you to write an objective memo, in IRAC form, advising whether to grant either party’s motion for summary judgment. Your judge says to write 550 words maximum.]

Part II. Essay Question (20 points)

The following facts apply to the essay question.

Assume that after *Winter v. NRDC* (the Navy sonar training case), Congress passed a new law that provides: “A plaintiff may seek an injunction against the U.S. Navy if the plaintiff shows (1) they have a professional interest in marine life and (2) Navy exercises are likely to harm marine life.” The Navy then planned new sonar training exercises off the coast of Southern California. A marine biologist from Southern California sued for an injunction, in federal court, alleging that the sonar training will harm marine mammals that are professionally important to his research.

The case reached the discovery stage, and the biologist requested Navy documents containing technical details about how military submarines’ sonar systems work. The Navy was willing to produce those documents for the purposes of this lawsuit, but the Navy was concerned that if the technical details of the sonar systems became publicly available, that would represent a significant national security risk. Therefore, the Navy filed a motion asking the District Court to issue a protective order requiring that the biologist may not publicly disclose any of the documents related to sonar systems, and that if any such documents were used or filed in the case, they must be filed confidentially under seal. (Normally, documents filed in litigation are publicly accessible, but documents filed under seal are not available to the general public.)

The District Court denied the Navy's motion to seal, and the District Court then entered an order requiring the Navy to produce the documents that the biologist requested, without protections for confidentiality. The Navy promptly appealed the District Court's discovery order to the U.S. Court of Appeals for the 13th Circuit. You clerk for a judge on the 13th Circuit, who has been assigned the case.

Question: Your judge asks you to write an objective memo, in IRAC form, analyzing whether the Court of Appeals has jurisdiction to hear the Navy's appeal of the discovery order at this stage of the case. Your judge says to write **650 words maximum**.